

The complaint

Mr G complains about how China Taiping Insurance (UK) Co Ltd handled and settled a claim he made under his home insurance policy for storm damage.

What happened

Mr G holds a buildings and contents insurance policy, which is provided by China Taiping Insurance (UK) Co Ltd – hereafter referred to as CTI.

On 5 April 2019, during a period of extremely bad weather and heavy rain, Mr G said he noticed water ingress to his living room and kitchen ceilings.

Prior to this period of bad weather Mr G stated that his roof was in excellent condition as it was only around six years old. So, he thought the water ingress was weather related. And he contacted CTI in order to make a claim under his policy.

CTI instructed Mr G to obtain a cause of damage report and quotes to repair the damage. He contacted a local roofing company, who he said confirmed that the leak had been caused by storm damage affecting his roof.

CTI appointed a loss adjuster, which I'll refer to as "T", to undertake an inspection of the damage and assist it in dealing with the claim. T visited Mr G's property on 9 July 2019 to determine the cause of damage.

T inspected Mr G's property from ground level using binoculars. But it didn't observe any storm damage to the roof. Instead, it felt the water ingress had been caused by wear and tear and poor workmanship of the roof. And it said wind-driven rain was highlighting the defect in the roof coverings. T also told CTI that, as the water ingress wasn't a sudden and one-off incident, the damage wasn't covered by the accidental damage clause of Mr G's policy. So, CTI declined to settle Mr G's claim.

Mr G refuted what T had said about the condition of his roof and he was unhappy with how CTI proposed to resolve his claim. So, he complained. He felt, as there'd been adverse weather at around the time the damage occurred, a storm had caused the damage to his property. And, because his roof was only around six years old, he thought the leak couldn't have happened due to wear and tear or poor workmanship.

Mr G asked CTI to settle his claim for damage. And he raised concerns that T hadn't undertaken a thorough inspection of his roof as it had based its opinion on the cause of damage using binoculars and photographs, which had been taken from ground level only. And he said the loss adjuster had told him that roof damage wasn't his area of expertise. But CTI maintained its position and told him it wouldn't meet his claim as wear and tear and poor workmanship were excluded under his policy.

Being dissatisfied with how CTI had dealt with his complaint Mr G referred it to our service. Our investigator looked into what had happened but didn't recommend upholding this complaint. They weren't persuaded there was a storm at around the time the damage

occurred. And they thought the damage was, most likely, due to the wear and tear and poor workmanship issues identified by T in its report. Overall, they thought CTI had dealt with Mr G's complaint fairly and not made an error in declining his claim. But Mr G disagreed and asked for his complaint to be referred to an ombudsman.

What I've decided – and why

I've considered all the available evidence and arguments to decide what's fair and reasonable in the circumstances of this complaint.

Where the information I've got is incomplete, unclear or contradictory, as some of it is here I must base my decision on the balance of probabilities.

I can see Mr G has gone to some trouble to provide our service with some very detailed submissions about why he believes CTI should meet his claim. I want to assure him that I've read everything he's sent us. I hope Mr G will understand if I don't address every comment he's made in this decision. I intend to concentrate on what I consider is key to the complaint.

My role is to assess whether I think CTI made a mistake in deciding Mr G's claim, or treated him unfairly, such that it needs to now put things right. And, having thought carefully about everything he and CTI have said, I'm afraid to say that I don't think it did. I appreciate Mr G will be disappointed by this outcome. But I hope he can understand the reasons behind my decision.

Mr G would like CTI to cover the damage to his property because he feels it was caused by adverse weather. His policy with CTI provides cover for damage caused by a range of perils that might happen. These are specific one-off events and include storm, for example. But, for a claim to be successful, Mr G would have to show that the damage he's claiming for was caused by one of the perils listed in his policy.

There are three conditions that need to be met before this service would say a claim for storm damage should succeed. Those are:

1. Is there evidence that there was a storm around the date of the damage?
2. Is the damage consistent with what we would normally consider storm damage?
3. Was the storm the main cause of the damage?

I have re-assessed Mr G's complaint and all the evidence with these three questions in mind. And I should also clarify that the answer to all three questions needs to be 'yes' for this service to be able to recommend that a storm complaint is upheld.

In weighing up the first question, I can see that Mr G's policy doesn't define the word 'storm'. This isn't unusual. And in that scenario this service takes the view that a storm generally involves violent winds, usually accompanied by rain, hail or snow. When looking at wind speed, we generally consider wind speeds of 47 mph or above to be consistent with a storm. So, this is what I've thought about when deciding whether there were storm conditions on or around the date of Mr G's claim.

Mr G has stated that the water ingress occurred on 5 April 2019 during a period of very bad weather. But, having reviewed weather records for Mr G's locality from 30 March to 8 April 2019 I can't see any wind speeds recorded of 47mph or above.

While I've taken into account what Mr G told our service about the weather at around the time the damage occurred the highest wind speeds, I've seen recorded were 35 mph on 5 April 2019 – when Mr G noticed the damage to his property. I can see our investigator considered whether a named storm was present at around the time Mr G's property sustained damage. But they couldn't find evidence of one.

Overall, there isn't enough evidence to satisfy me there was a storm at the time the damage occurred. And, as I'm not persuaded that a storm occurred around the time of the damage, I don't need to go on to address questions two or three as outlined above. So, I can't uphold Mr G's storm claim.

As I've mentioned in the background to this complaint, Mr G's policy excludes damage that happens due to wear and tear and poor workmanship. This is common with most home insurance policies because insurance is intended to cover the unforeseen – and something wearing out or requiring maintenance isn't unforeseen.

If an insurer wishes to decline a claim on the basis of an exclusion it has to show this is how the damage happened. In this case CTI relies on T's opinion that the damage was caused by wear and tear and poor workmanship of the roof. I know Mr G refutes this. So, I've carefully studied the information T provided CTI.

T stated that it wasn't able to find any evidence of storm damage to the roof. It did, however, observe that the lead flashing directly underneath the bedroom window had at least one split. T said this had been caused due to the lead being laid too long as opposed to it being storm related damage.

T said the lead flashing being laid too long had caused it to expand and contract over a period of time and weaken to form a split. And it thought this was the most likely source of the water ingress into the ground floor lounge. T also observed the tiles below the lead flashing were out of line and held in place with lead "tingles".

T inspected the roof above the kitchen area, where the second leak had been discovered by Mr G. It said there was no sign of any storm damage to the roof covering or flashings. But it noted a row of roofing tiles had slipped down from the Velux window flashing detail above, which would allow wind-driven rain to gain access under the Velux window flashing and then into the underfelt area thus causing water ingress.

I understand Mr G has concerns with T's assessment of his roof. He said T told him he didn't have expertise in roof damage. But I haven't seen enough evidence to persuade me this comment was made. I say this because T is a qualified Chartered Surveyor with over 30 years' experience in the construction and insurance industries. And inspecting roofs and assessing roof damage claims is typical work undertaken by a loss adjuster. So, I'm not persuaded that T was insufficiently qualified or experienced to provide an opinion on the cause of the roof damage here.

Mr G has also questioned the thoroughness of T's inspection. And he's raised concerns it inspected his roof from ground level. But it isn't unusual for loss adjusters not to go up onto a policyholder's roof due to health and safety, and other, reasons.

Based on the report I've seen, I'm satisfied T undertook an appropriate and adequate inspection of Mr G's property. A number of photographs were taken of the relevant areas of the roof and property interior, which show split lead and slipped tiles on Mr G's roof. And, impartially, I think the photographs T took support its findings that the cause of the water ingress was poor workmanship and wear and tear of the roof.

Lead doesn't split due to a one-off storm event. Correctly applied and maintained lead flashing should be weather resistant and unaffected by storm related weather – although it will deteriorate over time when exposed to extremes of weather.

Here, I'm satisfied that the lead split due to poor workmanship as it was laid too long. I also think tiles can slip over time when no longer being properly secured. And, again, I'm not persuaded tiles slipping was due to a one-off storm event.

I can see that Mr G has been given the opportunity of providing evidence to show that the cause of damage was weather related. But while he has provided two quotations he hasn't provided any evidence that supports his assertion that the damage was caused by a storm or which discredits T's opinion or findings.

I know Mr G will disagree with me but I think it's, most likely, that the adverse weather he experienced in April 2019 highlighted the existing defects with the roof. And this explains why there was water ingress each time there was wind-driven rain.

I know Mr G will be disappointed with this decision. I know he feels very strongly about the issues raised in his complaint. But, in the overall circumstances of this complaint, I'm satisfied CTI has shown our service reliable evidence to demonstrate that the damage, most likely, occurred due to poor workmanship and wear and tear of the roof. So, I'm satisfied CTI applied the wear and tear exclusion correctly. It follows that I can't conclude that its decision about his claim was unreasonable. And this means it wouldn't be fair to require it to pay this claim.

My final decision

My final decision is that I don't uphold this complaint.

Under the rules of the Financial Ombudsman Service, I'm required to ask Mr G to accept or reject my decision before 14 September 2020.

Julie Robertson
Ombudsman